

26STCP01102 26STCP01102

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: JUDGMENT CREDITOR'S MOTION TO VACATE SISTER STATE JUDGMENT PURSUANT TO CIVIL
PROCEDURE SECTION 1710.55

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Case Number: 26STCP01102 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

Fox Capital Group, Inc.,

Plaintiff,

vs.

Fashion Supplies, Inc., Joseph
P. Vecchiarelli,

Defendants.

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CASE NO: 26STCP01102

[TENTATIVE] ORDER RE: JUDGMENT

CREDITOR'S MOTION TO VACATE SISTER STATE JUDGMENT PURSUANT TO CIVIL PROCEDURE
SECTION 1710.55

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 17

Moving Party: Plaintiff, Fox Capital Group, Inc.

Opposing Party: None

Notice: OK

1. Court

Order

Now before the Court is Plaintiff

Fox Capital Group, Inc.'s June 25, 2026, motion to set aside the March 19, 2026, judgment in this action on the ground that the entered judgment is duplicative of a judgment previously entered in Los Angeles Superior Court ("LASC") Case No. ES022305.

A comparison of the August 29, 2018, Judgment in LASC Case No. ES022305 and the March 19, 2026, Judgment in this action, as well as other filings in both actions, confirms the proposition that the sister state judgment in this action is duplicative of the judgment entered in the ES022305 action.

California law is clear that "[n]o judgment based on a sister state judgment may be entered pursuant to" the Code of Civil Procedure where "[a] judgment based on the sister state judgment has previously been entered in any proceeding in this state." (Code Civ. Proc., § 1710.55, subd. (c).)

Based on the circumstances before the Court, relief is warranted and Plaintiff's motion is GRANTED.

The Court exercises its inherent authority pursuant to the Code of Civil Procedure to amend and control its process and orders so as to make them conform to law and justice (Code Civ. Proc., § 128, subd. (a)(8)), and SETS ASIDE and VACATES the March 19, 2026, judgment.

Next, the Court DISMISSES this action WITH PREJUDICE based on the conflict in relief between this action and LASC Case No. ES022305.

Plaintiff Fox Capital Group, Inc. is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and

must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court